

*D. White*

Date: 9/30/2013

Risk Review

**AGREEMENT FOR JUVENILE COMPLIANCE AND DIVERSION OFFICER**

By: BT  
Date: 9-17-13

**SERVICES BETWEEN LARAMIE COUNTY, WYOMING,**

**THE CITY OF CHEYENNE,**

**and the**

**LARAMIE COUNTY COMMUNITY JUVENILE SERVICES JOINT POWERS BOARD**

THIS AGREEMENT is made and entered into by and between Laramie County, Wyoming, 310 West 19<sup>th</sup> Street - Room 300 Cheyenne, Wyoming 82001, ("COUNTY"), the City of Cheyenne, 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("CITY"), and the Laramie County Community Juvenile Services Joint Powers Board (JSJPB), 310 West 19<sup>th</sup> Street, Room 300, Cheyenne, Wyoming 82001. The parties agree as follows:

**I. PURPOSE**

Laramie County has received funds from the Office of Juvenile Justice Detention Prevention (OJJDP) through the Volunteers of America Northern Rockies to support services provided through a Juvenile Compliance and Diversion Officer at the City of Cheyenne Police Department. The grant application for such funds is on file with the Laramie County Clerk, (Doc. 130423-14)

The goals of the services to be provided pursuant to this Agreement are:

1. To reduce the number of juveniles in detention through creating and monitoring the implementation of policies and programs to provide alternatives to detention; and
2. To increase compliance with the State of Wyoming in improving the monitoring of juveniles in detention facilities within Laramie County.

**II. TERM**

This Agreement shall commence on October 1, 2013 and shall remain in full force and effect through September 30, 2014.

**III. RESPONSIBILITIES OF COUNTY**

COUNTY shall pay CITY a total of thirty-six thousand eight hundred twenty-two dollars (\$36,822). Payment is to be made upon County's receipt of invoices and appropriate documentation from the CITY, as set forth below in Section IV, Paragraph A. All required documentation and invoices shall be submitted to the Laramie County Grants Manager. No payment shall be made before the last signature is affixed to this Agreement. Payments shall be in accordance with Wyo. Stat. 16-6-602 (as amended).

**IV. RESPONSIBILITIES OF CITY**

- A. CITY shall provide these services detailed herein, through the work of the Juvenile Compliance and Diversion Officer (JCDO). City shall submit quarterly invoices to COUNTY, in accordance with section III, along with all reports detailed in Section IV, Paragraph D(4), and appropriate documentation including pay stubs, hours worked by the JCDO, and the receipts and invoices of each expense.
- B. The JCDO shall support and work in coordination with the parties to this Agreement, and with the project partners which include the Office of Youth Alternatives, the Laramie County Sheriff's Department (LCSD), and the Cheyenne Police Department (CPD).
- C. The JCDO shall be dual-commissioned with the CPD and the LCSD and will work under the direct supervision of the CPD. The JCDO and the CPD shall coordinate and consult with the JSJPB, LCSD, and the Office of Youth Alternatives.
- D. The through the JCDO, and the coordination with all the project partners, shall be responsible for the following.
  - 1. **Site Visits/Data Collection:** Development and implementation of a monitoring and reporting program for all detention facilities in which juveniles from Laramie County are detained, to allow collection and reporting of data, as well as, the development and implementation of services provided to juveniles in detention.
  - 2. **Juvenile Citation and Arrest Monitoring**
    - a. The JCDO shall be knowledgeable of services available in Laramie County, and shall provide direct support to CPD Officers and LCSD deputies.
    - b. The JCDO shall immediately contact each juvenile upon issuance of a citation. The initial contact shall occur within 72 hours.
    - c. The JCDO shall assist in contacting parents when necessary. In accordance with ordinances and policy, every attempt will be made to release each juvenile to his/her parents.
    - d. The JCDO shall review all juvenile citations to assess and determine whether each citation warrants further involvement from the Court(s) or if diversion is appropriate.
    - e. The JCDO shall participate in the multi-disciplinary Juvenile Screening Committee to assist in determining whether diversion or other alternatives should be recommended to the Court(s).

3. **Training:** The JCDO shall work in coordination with the Office of Youth Alternatives to develop both orientation and in-service training for law enforcement officers. The training time and curriculum shall be developed to allow for POST certification credit. The training will include but not be limited to:

- a. Services and how to access them.
- b. Current laws and procedures.
- c. Adolescent development stages.
- d. The impact law enforcement has on influencing adolescents and their parents.

3. **Reporting.**

- a. The JCDO shall submit quarterly reports of juvenile arrest and outcome statistics, as required under the OJJDP funding to the Laramie County Grants Manager and the JSJPB. An individual copy of the report shall be submitted to each. Each report shall be submitted in a timely manner to ensure that both the JSJPB and the Laramie County Grants Manager receive the report by the fifth of the month for the months of January, April, July and October, starting January 2013 and ending October 2013. In addition to the statistics and information required in the format provided by the Volunteers of America Northern Rockies, each report shall include a financial status report and beneficiary data, and shall set forth in narrative fashion the work accomplished under the Agreement during the quarter.
- b. The JCDO shall submit such additional reports and information as may be required by the JSJPB.
- c. As requested by COUNTY, the JCDO shall assist with monitoring visits by the Volunteers of America Northern Rockies and shall provide all information required to evaluate the progress and performance of the program.
- d. The JCDO shall attend all regularly scheduled meetings of the JSJPB, and shall participate in such other meetings and trainings as may be requested by the JSJPB, consistent with other job requirements.

- E. CITY acknowledges that the funds being paid by the COUNTY to the CITY pursuant to this Agreement are funds awarded to COUNTY pursuant to the Cooperative Agreement with the Volunteers of America Northern Rockies (Doc.). CITY hereby certifies and warrants that it has reviewed and understands the terms and conditions of the Cooperative Agreement, and that it is able to and shall comply with the terms and conditions thereof.

## V. RESPONSIBILITIES of JSJPB

As required by the Volunteers of America Northern Rockies, the JSJPB shall act in a planning, oversight and monitoring role for this project and the overall status of Laramie County's compliance with the core requirements of the Juvenile Justice Detention Prevention Act. The JSJPB shall receive and review all required reports, shall coordinate with the other parties and project partners to ensure achievement of the purposes of this Agreement, and shall provide such input, feedback and assistance to the parties, project partners and JCDO as may be requested.

## **VI. GENERAL PROVISIONS**

A. Independent Contractor: The services to be performed by CITY are those of an independent contractor and not as an employee of COUNTY. Neither CITY nor its employees are eligible for Laramie County Employee benefits and each will be treated as an independent contractor for federal tax filing purposes. CITY assumes responsibility for its personnel who provide services pursuant to this contract and will make all deductions required of employers by state, federal and local laws and shall maintain liability insurance for each of them. CITY is free to perform the same or similar services for others.

B. Termination: This Agreement may be terminated (a) by either party at any time for failure of the other party to comply with the terms and conditions of this agreement; (b) upon thirty (30) days written notice; or (c) upon mutual written agreement by both parties.

C. Entire Agreement: This Agreement (7 pages) and Attachment A (26 pages) represent the entire and integrated agreement and understanding between the parties and supersede all prior negotiations, statements, representations and agreements, whether written or oral.

D. Assignment: Neither this Agreement, nor any rights or obligations hereunder shall be assigned or delegated by a party without the prior written consent of the other party.

E. Modification: This Agreement shall be modified only by a written agreement, duly executed by all parties hereto.

F. Invalidity: If any provision of this Agreement is held invalid or unenforceable by any court of competent jurisdiction, or if the COUNTY is advised of any such actual or potential invalidity or unenforceability, such holding or advice shall not invalidate or render unenforceable any other provision hereof. It is the express intent of the parties that the provisions of this Agreement are fully severable.

G. Applicable Law and Venue: The parties mutually understand and agree this Agreement shall be governed by and interpreted pursuant to the laws of the State of Wyoming. If any dispute arises between the parties from or concerning this Agreement of the subject matter hereof, any suit or proceeding at law or in equity shall be brought in the District Court of the State of the Wyoming, First Judicial District, sitting at Cheyenne, Wyoming. The foregoing provisions of this paragraph are agreed by the parties to be a material inducement to CITY, COUNTY and JSJPB in executing this Agreement. This provision is not intended nor shall it be

construed to waive CITY's or COUNTY'S, or the JSJPB's governmental immunity as provided in this Agreement.

H. Governmental/Sovereign Immunity: Neither COUNTY, CITY nor the JSJPB waives their Governmental/Sovereign Immunity, as provided by any applicable law including Wyo. Stat. 1-39-101 *et seq.*, by entering into this Agreement. Further COUNTY, CITY and the JSJPB fully retain all immunities and defenses provided by law with regard to any action, whether in tort, contract or any other theory of law, based on this Agreement except for an action brought to enforce the terms of this Agreement.

I. Third Parties: The parties do not intend to create in any other individual or entity the status of third party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties and obligations contained in this Agreement shall operate only between the parties to the Agreement, and shall inure solely to the benefit of the parties to this Agreement.

J. Force Majeure: Neither party shall be liable to perform under this Agreement if such failure arises out of causes beyond control, and without the fault or the negligence of said party. Such causes may include, but are not restricted to, Act of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather. In every case, however, a failure to perform must be beyond the control and without the fault or the negligence of said party.

K. Limitation on Payment: COUNTY's payment obligation is conditioned upon the availability of funds which are appropriated or allocated for the payment of this obligation. If funds are not allocated and available for the continuance of the services and equipment provided by CITY the Agreement may be terminated by COUNTY at the end of the period for which funds are available. COUNTY shall notify CITY at the earliest possible time of the services which will or may be affected by a shortage of funds. At the earliest possible time means at least thirty (30) days before the shortage will affect payment of claims, if COUNTY knows of the shortage at least thirty (30) days in advance. No penalty shall accrue to COUNTY in the event this provision is exercised, and COUNTY shall not be obligated or liable for any future payments due or for any damages as a result of termination under this provision. This provision shall not be interpreted or construed to permit COUNTY to terminate this Agreement in order to acquire similar services from another party.

L. Notices: All notices required and permitted under this Agreement shall be deemed to have been given, if and when deposited in the U.S. Mail, properly stamped and addressed to the party for whom intended at such parties' address listed herein, or when personally delivered personally to such party. A party may change its address for notice hereunder by giving written notice to the other party.

M. Indemnification: Each party to this agreement shall be responsible for any liability arising from its own conduct. Neither party agrees to insure, defend or indemnify the other.

N. Compliance with Law: CITY shall comply with all applicable laws, regulations and ordinances, whether Federal, State or Local.

O. Signatures in Counterpart Acceptable. Each party may execute this Agreement through the signatures of its appropriate officers, and may execute a separate copy thereof. Each copy so executed shall be considered a final copy. The effective date of this Agreement shall be the date of the last signature affixed hereto.

**[The remainder of this page intentionally left blank.]**

**LARAMIE COUNTY, WYOMING**

By: \_\_\_\_\_ Date \_\_\_\_\_  
Troy Thompson, Chairman - Laramie County Commissioners

ATTEST:

By: \_\_\_\_\_ Date \_\_\_\_\_  
Debbye Lathrop, Laramie County Clerk

**CITY OF CHEYENNE**

By: \_\_\_\_\_ Date \_\_\_\_\_  
Richard Kaysen, Mayor

ATTEST: \_\_\_\_\_ Date \_\_\_\_\_  
Carol Intelekofer, City Clerk

**LARAMIE COUNTY COMMUNITY JUVENILE SERVICES JOINT POWERS BOARD**

By:  Date 9-19-13

ATTEST:  
By:  Date 9-19-13

This agreement is effective the date of the last signature affixed to this page.

**REVIEWED AND APPROVED AS TO FORM ONLY:**

By: \_\_\_\_\_ Date \_\_\_\_\_  
Laramie County Attorney

By: \_\_\_\_\_ Date \_\_\_\_\_  
City Attorney

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1876 S. Sheridan Avenue  
Sheridan, WY 82801  
307-672-0475  
www.voanr.org

September 13, 2013

Sandra Newland  
Laramie County  
310 West 19th Street, Room 300  
Cheyenne, WY 82001

Dear Sandra:

This letter is to inform you that Laramie County has been selected to receive a 2011 Nonparticipating State Award Subgrant made possible by a Cooperative Agreement (Award Number: 2011-JF-FX-K006) between Volunteers of America Northern Rockies (VOANR) and the Office of Juvenile Justice and Delinquency Prevention (OJJDP). The primary objective and scope of work is to Attain and Maintain Compliance with the Core Requirements of the Federal Juvenile Justice and Delinquency Prevention Act of 2002 (JJDPA). Be advised that this is federal funding under CFDA#16-540.

While counties submitted a total of \$549,588 in funding requests, VOANR could only disperse \$251,000, an average of \$16,733 per county. VOANR did not allocate monies based on this average, instead working with the State Advisory Council on Juvenile Justice (SACJJ) to make decisions based on the amount of money available, on county requests, on county needs, and on the effectiveness of compliance efforts.

After review of your application, VOANR and the SACJJ have awarded Laramie County the amount of \$36,822. Laramie County's application ranked tenth out of fifteen applications in terms of average score and ninth in terms of average rank. The SACJJ's Grants Committee did not identify any concerns regarding Laramie County's application. The contract period will begin on October 1, 2013 and end on September 30, 2014.

We appreciated your application, and your county is clearly working hard to attain compliance with the JJDPA. We have identified, however, the following Special Conditions:

- Laramie County will need to submit a revised budget, as VOANR could not award monies at the level requested.

Enclosed you will find two original Subaward Agreements. Please have the authorized signatory sign both originals and return both signed copies to VOANR. We will send one of the original documents to you when fully executed. Please review the agreement and attachments carefully as they outline reporting requirements and draw down information. If you have any questions, feel free to contact me.

Sincerely,



Craig Fisgus  
Project Director

**VOLUNTEERS OF AMERICA NORTHERN ROCKIES (VOANR)  
2011 OJJDP NON-PARTICIPATING STATE GRANT APPLICATION**

|                                                                                                                                                                                                                                                                                                                                                                      |                                                                                                                                                                                                                                                                                                                                                                                                                          |                    |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------|
| <b>1. APPLICANT AGENCY:</b><br><u>Laramie County, Wyoming</u>                                                                                                                                                                                                                                                                                                        | <b>2. PROJECT TITLE:</b><br><u>Juvenile Compliance and Diversion Officer</u>                                                                                                                                                                                                                                                                                                                                             |                    |
| <b>3. CONTACT PERSON (NAME AND TITLE):</b><br><u>Sandra Newland, Laramie County Grants Manager</u><br><br>MAILING ADDRESS: <u>309 W. 20<sup>th</sup> Street, Suite 3100</u><br>CITY: <u>Cheyenne</u> ZIP: <u>82001</u><br>PHONE: <u>307-399-3448</u> FAX: <u>307-633-4277</u><br>EMAIL ADDRESS: <u>snewland@laramiecounty.com</u>                                    | <b>4. BOARD OF COUNTY COMMISSIONERS<br/>(Chair or Designated Commissioner):</b><br><u>Troy Thompson, Chairman of the Board of the Laramie County Commissioners</u><br>MAILING ADDRESS: <u>310 W. 19<sup>th</sup> Street, Suite 300</u><br>CITY: <u>Cheyenne</u> ZIP: <u>82001</u><br>PHONE: <u>307-633-4262</u> FAX: <u>307-633-4267</u><br>EMAIL ADDRESS: <u>tthompson@laramiecountytv.com</u>                          |                    |
| <b>5. TYPE OF APPLICATION (CHECK ONE):</b><br><input type="checkbox"/> Initial <input checked="" type="checkbox"/> Continuation                                                                                                                                                                                                                                      | <b>6. APPLICANT TYPE (CHECK ONE):</b><br><input type="checkbox"/> Tribal Organization <input type="checkbox"/> City<br><input checked="" type="checkbox"/> County <input type="checkbox"/> Town                                                                                                                                                                                                                          |                    |
| <b>7. WILL THIS AWARD (CHECK ONE):</b><br><input checked="" type="checkbox"/> Enhance An Existing Program<br><input type="checkbox"/> Initiate A New Program                                                                                                                                                                                                         | <b>8. PROPOSED GRANT PERIOD:</b><br>Start Date: <u>October 1, 2013</u><br>End Date: <u>September 30, 2014</u>                                                                                                                                                                                                                                                                                                            |                    |
| <b>9. AREA TO BE SERVED:</b><br><input checked="" type="checkbox"/> County Only<br>Name of County: <u>Laramie County (includes Cheyenne, Albin, Burns and Pine Bluffs)</u><br><input type="checkbox"/> Regional or Other Area<br>Describe Boundaries: _____                                                                                                          | <b>10. TYPE OF AGENCY (CHECK ONE):</b><br><input type="checkbox"/> Adjudication <input type="checkbox"/> Prosecution<br><input type="checkbox"/> Corrections <input type="checkbox"/> Public Defense<br><input type="checkbox"/> Juvenile <input type="checkbox"/> Victim Assistance<br><input checked="" type="checkbox"/> Law Enforcement <input type="checkbox"/> Other<br><input type="checkbox"/> Pretrial Services |                    |
| Refer to VOANR's "Request for Proposals to Attain and Maintain Compliance with the Core Requirements of the Federal Juvenile Justice and Delinquency Prevention Act of 2002 (JJDP)" while completing this application for funds. As noted in this document, Community Juvenile Service Boards can apply on behalf of their respective Board of County Commissioners. |                                                                                                                                                                                                                                                                                                                                                                                                                          |                    |
| <b>11. BUDGET SUMMARY (Totals for each category must equal total on the Budget Form, Attachment III)</b>                                                                                                                                                                                                                                                             |                                                                                                                                                                                                                                                                                                                                                                                                                          |                    |
|                                                                                                                                                                                                                                                                                                                                                                      | Brief Description of Activities                                                                                                                                                                                                                                                                                                                                                                                          | Total (in dollars) |
| A. Personnel                                                                                                                                                                                                                                                                                                                                                         | Portion of Officer's Salary and Benefits                                                                                                                                                                                                                                                                                                                                                                                 | \$ 82,616.00       |
| B. Supplies & Operating                                                                                                                                                                                                                                                                                                                                              | Cell Phone and Air Card                                                                                                                                                                                                                                                                                                                                                                                                  | \$864.00           |
| C. Travel                                                                                                                                                                                                                                                                                                                                                            |                                                                                                                                                                                                                                                                                                                                                                                                                          | \$                 |
| D. Equipment                                                                                                                                                                                                                                                                                                                                                         |                                                                                                                                                                                                                                                                                                                                                                                                                          | \$                 |
| E. Contracted, Consultant and Professional Services                                                                                                                                                                                                                                                                                                                  |                                                                                                                                                                                                                                                                                                                                                                                                                          | \$                 |
| <b>Total:</b>                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                                                                                          | <b>\$83,460.00</b> |

**12. DEMOGRAPHICS (provide most recent data available)**

Data for both juvenile population and juvenile arrests must be collected from the same 12-month period of time.

Start Date for Data Collection: 4/1/2012 End Date for Data Collection: 4/1/2013

|                                                  | # of Total Juveniles | # of Male Juveniles | # of Female Juveniles       | # of White Juveniles | # of American Indian or Alaska Native Juveniles | # of Asian Juveniles | # of Black or African-American (non-Hispanic) Juveniles | # of Hispanic or Latino Juveniles | # of Native Hawaiian or Other Pacific Islander Juveniles |
|--------------------------------------------------|----------------------|---------------------|-----------------------------|----------------------|-------------------------------------------------|----------------------|---------------------------------------------------------|-----------------------------------|----------------------------------------------------------|
| Juvenile Population in Service Area (Ages 0-17): | <u>9296</u>          | <u>NA</u>           | <u>NA</u>                   | <u>7108</u>          | <u>94</u>                                       | <u>108</u>           | <u>336</u>                                              | <u>1650</u>                       | <u>0</u>                                                 |
| • Juvenile Arrests in Service Area (Ages 0-17):  | <u>744</u>           | <u>376</u>          | <u>202</u>                  | <u>494</u>           | <u>11</u>                                       | <u>3</u>             | <u>74</u>                                               | <u>161</u>                        | <u>0</u>                                                 |
| • Juvenile Arrests Type of Offenses:             | # Felonies           |                     | # Misdemeanor (Non-alcohol) |                      | # Misdemeanor (Alcohol-related)                 |                      | # Status                                                |                                   |                                                          |
|                                                  | <u>23</u>            |                     | <u>424</u>                  |                      | <u>116</u>                                      |                      | <u>28</u>                                               |                                   |                                                          |
| • Includes summons and tickets                   |                      |                     |                             |                      |                                                 |                      |                                                         |                                   |                                                          |

**13. SECURE HOLDING OF JUVENILES IN APPLICANT'S COUNTY JAIL**

Are juveniles ever held securely in your county jail, including any cells or areas that are reserved for juveniles?

☒ No ☐ Yes

If "Yes," list all agencies, courts or referral sources for whom you securely hold juveniles for any length of time:

a. \_\_\_\_\_ b. \_\_\_\_\_

c. \_\_\_\_\_ d. \_\_\_\_\_

If "No," where are juveniles from your service area held if secure detention/incarceration is requested or ordered?

The Laramie County Juvenile Service Center**14. JUVENILE JUSTICE TEAM**

A local juvenile justice team or board must act in a planning, oversight, and monitoring role for this project and the overall status of the area's compliance with the core requirements of the JJDP. This team should include representation from law enforcement, courts, probation, schools, social services, youth-serving agencies (public and private), and other interested community agencies and members. A Community Juvenile Service Board would meet this requirement. Complete *Attachment I, Juvenile Justice Team Membership*. In addition, please attach a copy of the minutes from the most recent meeting.

Meeting frequency: ☐ Weekly ☒ Monthly ☐ Quarterly ☐ Other (please explain): \_\_\_\_\_

In the space below briefly describe this team and how it fulfills its role:

The Laramie County Juvenile Services Joint Powers Board is comprised of representatives appointed by the City of Cheyenne and the Laramie County Board of Commissioners and includes statutorily defined representation from a variety of agencies. This board is charged with developing and implementing a continuum of services related to juvenile justice. The board meets on a monthly basis, providing oversight and review capability for juvenile justice programs and issues within Laramie County. The board advises its constituent governing bodies and agencies, provides a central point for sharing information and develops and implements plans and services as a free-standing and independently funded governing body.

# 15. PROCESSES AND OUTCOMES AVAILABLE FOR JUVENILES

The following table outlines basic processes and outcomes available for juveniles. Check all that apply and are available in your jurisdiction.

## CURRENT JUSTICE PROCESSES AND OUTCOMES FOR JUVENILES

| PROCESS                                                                    | POTENTIAL OUTCOMES                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |                                     |                                     |         |          |                      |                                     |                                     |                                     |                          |                                     |                                     |                                     |                       |                                     |                                     |                                     |       |                                     |                                     |                                     |            |                          |                          |                          |                        |                                     |                                     |                                     |                   |                                     |                                     |                                     |             |                                     |                                     |                                     |                      |                                     |                                     |                                     |
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| Initial Intake                                                             | <input checked="" type="checkbox"/> 1. Law enforcement citation<br><input checked="" type="checkbox"/> 2. Law enforcement arrest<br><input type="checkbox"/> 3. Referral to county attorney<br><input type="checkbox"/> 4. Referral to municipal attorney<br><input checked="" type="checkbox"/> 5. Others (describe): <u>The City of Cheyenne Office of Youth Alternatives provides intake diversion and referral services under a contract with Laramie County.</u>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                     |                                     |         |          |                      |                                     |                                     |                                     |                          |                                     |                                     |                                     |                       |                                     |                                     |                                     |       |                                     |                                     |                                     |            |                          |                          |                          |                        |                                     |                                     |                                     |                   |                                     |                                     |                                     |             |                                     |                                     |                                     |                      |                                     |                                     |                                     |
| Prosecuting Attorney Action<br>(Only in event of arrest or referral)       | County Attorney<br><input checked="" type="checkbox"/> 1. Refer to circuit court (same sanctions as adult)<br><input checked="" type="checkbox"/> 2. Refer to district juvenile court (trial as juvenile)<br><input checked="" type="checkbox"/> 3. Pre-court diversion (unsupervised probation)<br><input type="checkbox"/> 4. Consent decree (unsupervised or supervised probation)<br><input checked="" type="checkbox"/> 5. Others (describe): <u>The City of Cheyenne Office of Youth Alternatives provides intake diversion and referral services under a contract with Laramie County.</u>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                                     |                                     |         |          |                      |                                     |                                     |                                     |                          |                                     |                                     |                                     |                       |                                     |                                     |                                     |       |                                     |                                     |                                     |            |                          |                          |                          |                        |                                     |                                     |                                     |                   |                                     |                                     |                                     |             |                                     |                                     |                                     |                      |                                     |                                     |                                     |
| Pre-court Action<br>(Only in event of referral to district juvenile court) | <input type="checkbox"/> 1. Pre-trial disposition report<br><input checked="" type="checkbox"/> 2. Multi-disciplinary team meeting<br><input type="checkbox"/> 3. Others (describe): _____                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                     |                                     |         |          |                      |                                     |                                     |                                     |                          |                                     |                                     |                                     |                       |                                     |                                     |                                     |       |                                     |                                     |                                     |            |                          |                          |                          |                        |                                     |                                     |                                     |                   |                                     |                                     |                                     |             |                                     |                                     |                                     |                      |                                     |                                     |                                     |
| Detention/Release Action                                                   | <input checked="" type="checkbox"/> 1. Release to parent/guardian<br><input checked="" type="checkbox"/> 2. Pre-trial non-secure supervision or monitoring<br><input checked="" type="checkbox"/> 3. Secure detention in approved juvenile detention facility<br><input type="checkbox"/> 4. Secure detention in county jail<br><input type="checkbox"/> 5. Secure detention in municipal lock-up<br><input type="checkbox"/> 6. Others (describe): _____                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                     |                                     |         |          |                      |                                     |                                     |                                     |                          |                                     |                                     |                                     |                       |                                     |                                     |                                     |       |                                     |                                     |                                     |            |                          |                          |                          |                        |                                     |                                     |                                     |                   |                                     |                                     |                                     |             |                                     |                                     |                                     |                      |                                     |                                     |                                     |
| Court Action                                                               | <table border="1"> <thead> <tr> <th></th><th>Municipal</th><th>Circuit</th><th>District</th></tr> </thead> <tbody> <tr> <td>Release/dismiss case</td><td><input checked="" type="checkbox"/></td><td><input checked="" type="checkbox"/></td><td><input checked="" type="checkbox"/></td></tr> <tr> <td>Mental health evaluation</td><td><input checked="" type="checkbox"/></td><td><input checked="" type="checkbox"/></td><td><input checked="" type="checkbox"/></td></tr> <tr> <td>Deferred adjudication</td><td><input checked="" type="checkbox"/></td><td><input checked="" type="checkbox"/></td><td><input checked="" type="checkbox"/></td></tr> <tr> <td>Fines</td><td><input checked="" type="checkbox"/></td><td><input checked="" type="checkbox"/></td><td><input checked="" type="checkbox"/></td></tr> <tr> <td>Teen Court</td><td><input type="checkbox"/></td><td><input type="checkbox"/></td><td><input type="checkbox"/></td></tr> <tr> <td>Unsupervised probation</td><td><input checked="" type="checkbox"/></td><td><input checked="" type="checkbox"/></td><td><input checked="" type="checkbox"/></td></tr> <tr> <td>Community service</td><td><input checked="" type="checkbox"/></td><td><input checked="" type="checkbox"/></td><td><input checked="" type="checkbox"/></td></tr> <tr> <td>Restitution</td><td><input checked="" type="checkbox"/></td><td><input checked="" type="checkbox"/></td><td><input checked="" type="checkbox"/></td></tr> <tr> <td>Supervised probation</td><td><input checked="" type="checkbox"/></td><td><input checked="" type="checkbox"/></td><td><input checked="" type="checkbox"/></td></tr> </tbody> </table> |                                     | Municipal                           | Circuit | District | Release/dismiss case | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> | Mental health evaluation | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> | Deferred adjudication | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> | Fines | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> | Teen Court | <input type="checkbox"/> | <input type="checkbox"/> | <input type="checkbox"/> | Unsupervised probation | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> | Community service | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> | Restitution | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> | Supervised probation | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> |
|                                                                            | Municipal                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | Circuit                             | District                            |         |          |                      |                                     |                                     |                                     |                          |                                     |                                     |                                     |                       |                                     |                                     |                                     |       |                                     |                                     |                                     |            |                          |                          |                          |                        |                                     |                                     |                                     |                   |                                     |                                     |                                     |             |                                     |                                     |                                     |                      |                                     |                                     |                                     |
| Release/dismiss case                                                       | <input checked="" type="checkbox"/>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> |         |          |                      |                                     |                                     |                                     |                          |                                     |                                     |                                     |                       |                                     |                                     |                                     |       |                                     |                                     |                                     |            |                          |                          |                          |                        |                                     |                                     |                                     |                   |                                     |                                     |                                     |             |                                     |                                     |                                     |                      |                                     |                                     |                                     |
| Mental health evaluation                                                   | <input checked="" type="checkbox"/>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> |         |          |                      |                                     |                                     |                                     |                          |                                     |                                     |                                     |                       |                                     |                                     |                                     |       |                                     |                                     |                                     |            |                          |                          |                          |                        |                                     |                                     |                                     |                   |                                     |                                     |                                     |             |                                     |                                     |                                     |                      |                                     |                                     |                                     |
| Deferred adjudication                                                      | <input checked="" type="checkbox"/>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> |         |          |                      |                                     |                                     |                                     |                          |                                     |                                     |                                     |                       |                                     |                                     |                                     |       |                                     |                                     |                                     |            |                          |                          |                          |                        |                                     |                                     |                                     |                   |                                     |                                     |                                     |             |                                     |                                     |                                     |                      |                                     |                                     |                                     |
| Fines                                                                      | <input checked="" type="checkbox"/>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> |         |          |                      |                                     |                                     |                                     |                          |                                     |                                     |                                     |                       |                                     |                                     |                                     |       |                                     |                                     |                                     |            |                          |                          |                          |                        |                                     |                                     |                                     |                   |                                     |                                     |                                     |             |                                     |                                     |                                     |                      |                                     |                                     |                                     |
| Teen Court                                                                 | <input type="checkbox"/>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | <input type="checkbox"/>            | <input type="checkbox"/>            |         |          |                      |                                     |                                     |                                     |                          |                                     |                                     |                                     |                       |                                     |                                     |                                     |       |                                     |                                     |                                     |            |                          |                          |                          |                        |                                     |                                     |                                     |                   |                                     |                                     |                                     |             |                                     |                                     |                                     |                      |                                     |                                     |                                     |
| Unsupervised probation                                                     | <input checked="" type="checkbox"/>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> |         |          |                      |                                     |                                     |                                     |                          |                                     |                                     |                                     |                       |                                     |                                     |                                     |       |                                     |                                     |                                     |            |                          |                          |                          |                        |                                     |                                     |                                     |                   |                                     |                                     |                                     |             |                                     |                                     |                                     |                      |                                     |                                     |                                     |
| Community service                                                          | <input checked="" type="checkbox"/>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> |         |          |                      |                                     |                                     |                                     |                          |                                     |                                     |                                     |                       |                                     |                                     |                                     |       |                                     |                                     |                                     |            |                          |                          |                          |                        |                                     |                                     |                                     |                   |                                     |                                     |                                     |             |                                     |                                     |                                     |                      |                                     |                                     |                                     |
| Restitution                                                                | <input checked="" type="checkbox"/>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> |         |          |                      |                                     |                                     |                                     |                          |                                     |                                     |                                     |                       |                                     |                                     |                                     |       |                                     |                                     |                                     |            |                          |                          |                          |                        |                                     |                                     |                                     |                   |                                     |                                     |                                     |             |                                     |                                     |                                     |                      |                                     |                                     |                                     |
| Supervised probation                                                       | <input checked="" type="checkbox"/>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> |         |          |                      |                                     |                                     |                                     |                          |                                     |                                     |                                     |                       |                                     |                                     |                                     |       |                                     |                                     |                                     |            |                          |                          |                          |                        |                                     |                                     |                                     |                   |                                     |                                     |                                     |             |                                     |                                     |                                     |                      |                                     |                                     |                                     |

|                                                |                                     |                                     |                                     |
|------------------------------------------------|-------------------------------------|-------------------------------------|-------------------------------------|
| Electronic home detention                      | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> |
| Group home                                     | <input type="checkbox"/>            | <input type="checkbox"/>            | <input type="checkbox"/>            |
| Others (describe): _____                       | <input type="checkbox"/>            | <input type="checkbox"/>            | <input type="checkbox"/>            |
| Referral to approved juvenile detention center | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> | <input type="checkbox"/>            |
| Confinement in county detention center         | <input type="checkbox"/>            | <input checked="" type="checkbox"/> | <input checked="" type="checkbox"/> |
| Referral to Boys School or Girls School        | <input type="checkbox"/>            | <input type="checkbox"/>            | <input checked="" type="checkbox"/> |

Please provide a brief description of processes and available outcomes:

The three courts all handle juvenile cases. As Laramie County has a range of sentencing options these courts can utilize diversionary programs, electronic monitoring, diversion counseling, placement in the approved juvenile detention facilities or placement in the State of Wyoming custody for designated institutional programs.

## 16. DATA COLLECTION AND REPORTING

All agencies must have the capacity and staff assigned to enter the required data on all juveniles held into the web-based "Juvenile Jail Roster" database, or to submit the required data on monthly juvenile jail rosters.

- a. Do you currently perform this required compliance activity? ☐ No ☒ Yes

If Yes, briefly describe how this is accomplished (who is responsible, how often is data entered/reports submitted, etc.):

This data is being collected through a new two-pronged effort designed to provide the most thorough information possible. First, as in years past, some data is collected by a juvenile services diversion officer employed by the City of Cheyenne, and working the City's Office of Youth Alternatives, under contract with Laramie County. The data is entered weekly and reported quarterly. In addition, as of July 1, 2012, staff at the Juvenile Service Center owned by Laramie County and operated by the Laramie County Sheriff compiles data on all juveniles who are assessed at the facility.

If No, describe your plan to implement this activity:

- b. Are you requesting funds to maintain or implement this activity? ☒ No ☐ Yes

If Yes, briefly describe what needs to be funded and how much you are requesting: (\$\_\_\_\_\_)

The application requests funding to contract with the City of Cheyenne to provide these services through the Cheyenne Police Department of Office of Youth Alternatives-this data collection is a component of the overall contract and is incidental to the data gathering related to Disproportionate Minority Contact, Activity 9 and does not increase the overall cost to the County.

IN ANSWERING THE FOLLOWING THREE (3) ITEMS, REFER CLOSELY TO THE VOANR RFP AND THE ATTACHMENT SUMMARIZING VIOLATIONS OF THE JJDPA BY COUNTY AND MUNICIPALITY FOR THE MOST CURRENT YEAR OF REPORTING.

## 17. THE DEINSTITUTIONALIZATION OF STATUS AND NON-OFFENDERS FROM SECURE DETENTION AND PLACEMENT

Applicants must demonstrate how they will insure that no accused or adjudicated status offenders (not including underage drinking and MIPs) and non-offenders will be held securely in adult jails or lock-ups.

- a. Based on the latest Compliance Monitoring Report submitted by VOANR, how many violations of this requirement

occurred in your jurisdiction?

0

- b. If you had no violations, congratulations - briefly describe what policies, procedures and/or non-secure alternatives you have in place to maintain this compliance (then skip to "d"):  
Prior to July 1, 2012, Laramie County juveniles were detained at a privately run juvenile detention and treatment facility, Southeast Wyoming Juvenile Services (formally the Wardle Academy). As of July 1, 2012, juveniles are assessed at the new Juvenile Services Center, where they are detained only upon court order. The new protocols are designed to minimize the number of accused and adjudicated youth who are detained. Data regarding gender, nature of offense, and ethnicity are now being collected at the Juvenile Services Center.
- c. If you had violations, please provide the following information:

| Number Held by Legal Status and Offense | Males | Females | Total # |
|-----------------------------------------|-------|---------|---------|
| Non-Offender                            |       |         |         |
| Accused Status Offender                 |       |         |         |
| Adjudicated Status Offender             |       |         |         |
| TOTALS:                                 |       |         |         |

Describe your plan to implement policies, procedures and/or non-secure alternatives to attain compliance:

The Juvenile Services Diversion Officer is responsible for reviewing all juvenile citations and arrests by local law enforcement, which review includes a determination of whether the intake, detention and/or release was in compliance, and whether appropriate diversion options were considered. The new Juvenile Services Center is operating pursuant to appropriate policies and procedures requiring assessment, determination and data collection.

- J. Are you requesting funds to maintain or implement this activity? ☐ No ☒ Yes  
If Yes, briefly describe what needs to be funded and how much you are requesting: (\$83,460.00 )

The funds requested are to continue contracting with the City of Cheyenne to provide the juvenile services diversion officer, who works closely with law enforcement, the courts and Juvenile Services Center and the Laramie County Community Juvenile Services Joint Powers Board to review all juvenile citations and arrests to determine compliance in intake, detention, and release, and consideration and use of appropriate diversion options.

## 18. THE REMOVAL OF JUVENILES FROM CONFINEMENT IN ADULT JAILS OR LOCK-UPS

- a. Based on the latest Compliance Monitoring Report submitted by VOANR, how many violations of this requirement occurred in your jurisdiction.

0

| Type of Juvenile Held                                                                                                | Males | Females | Total |
|----------------------------------------------------------------------------------------------------------------------|-------|---------|-------|
| Total Status Offenders and Non-offenders noted in item, #6, above.                                                   |       |         |       |
| Accused Delinquents held over 6 hours for processing – Underage drinking or MIP-Alcohol.                             |       |         |       |
| Accused Delinquents held over 6 hours for processing – Other.                                                        |       |         |       |
| Accused or Adjudicated Delinquents held over 6 hours prior to a court appearance – Underage drinking or MIP-Alcohol. |       |         |       |
| Accused or Adjudicated Delinquents held over 6 hours prior to a court appearance – Other.                            |       |         |       |
| Accused or Adjudicated Delinquents held over 6 hours after a court appearance – Underage drinking or MIP-Alcohol.    |       |         |       |

|                                                                                                                                                                                                                 |  |  |  |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|--|--|
| Accused or Adjudicated Delinquents held over 6 hours after a court appearance – Other.                                                                                                                          |  |  |  |
| Accused or Adjudicated Delinquents held for any period of time for reasons other than processing or related to a court appearance, e.g. punishment or sentenced disposition – Underage drinking or MIP-Alcohol. |  |  |  |
| Accused or Adjudicated Delinquents held for any period of time for reasons other than processing or related to a court appearance, e.g. punishment or sentenced disposition – Other.                            |  |  |  |
| <b>TOTALS:</b>                                                                                                                                                                                                  |  |  |  |

- b. If you had no violations, congratulations - briefly describe what policies, procedures and/or non-secure alternatives you have in place to maintain this compliance (then skip to "d"):  
Laramie County does not hold juveniles in adult correction facilities. Furthermore, diversion efforts are made to reduce the number of accused and adjudicated juveniles being booked and held at the Juvenile Services Center.
- c. If you had violations, describe your plan to implement policies, procedures and/or non-secure alternatives to attain compliance for each type of juvenile held:  
 \_\_\_\_\_
- d. Are you requesting funds to maintain, or implement a plan to attain compliance? ☒ No ☐ Yes  
 If Yes, briefly describe what needs to be funded and how much you are requesting: (\$\_\_\_\_\_) \_\_\_\_\_

#### 19. SEPARATION OF JUVENILES FROM ADULT INMATES

Adult jails and lock-ups that hold juveniles securely, even if allowed, must insure that these juveniles are sight and sound separated from incarcerated adults.

- a. Based on the latest Compliance Monitoring Report submitted by VOANR, how many violations of this requirement occurred in your jurisdiction?  
0
- b. If you had no violations, congratulations - briefly describe what policies, procedures and/or actions you have in place to maintain this compliance (then skip to "d"):  
Laramie County does not hold juveniles in adult correction facilities. They are booked and held at the Juvenile Services Center.
- c. If you had violations, describe your plan to implement policies, procedures and/or actions to attain compliance for each type of juvenile held:  
 \_\_\_\_\_
- d. Are you requesting funds to maintain, or implement a plan to attain compliance? ☒ No ☐ Yes  
 If Yes, briefly describe what needs to be funded and how much you are requesting: (\$\_\_\_\_\_) \_\_\_\_\_

**20. DISPROPORTIONATE MINORITY CONTACT**

All agencies must submit the following data on juveniles who contact the juvenile justice system. If agencies cannot provide the information, they must develop and implement a plan to compile this data. Refer to Attachment B, the "Disproportionate Minority Contact Information Sheet," for definitions of race/ethnicity and for definitions of the nine contact points identified in this table. Please provide the following information:

| Contact Point                                    | # of White Juveniles | # American Indian or Alaska Native Juveniles | # of Asian Juveniles | # of Black or African-American Juveniles (Non-Hispanic) | # of Hispanic or Latino Juveniles | # of Native Hawaiian or Other Pacific Islander Juveniles |
|--------------------------------------------------|----------------------|----------------------------------------------|----------------------|---------------------------------------------------------|-----------------------------------|----------------------------------------------------------|
| 1) Arrest                                        | 494                  | 11                                           | 3                    | 74                                                      | 161                               | 0                                                        |
| 2) Referral                                      | 494                  | 11                                           | 3                    | 74                                                      | 161                               | 0                                                        |
| 3) Diversion                                     | 110                  | 6                                            | 1                    | 13                                                      | 49                                | 0                                                        |
| 4) Detention                                     | 106                  | 2                                            | 2                    | 36                                                      | 46                                | 0                                                        |
| 5) Petitioned/Charges Filed                      | 0                    | 0                                            | 0                    | 0                                                       | 0                                 | 0                                                        |
| 6) Delinquent Findings                           | 0                    | 0                                            | 0                    | 0                                                       | 0                                 | 0                                                        |
| 7) Probation                                     | 190                  | 10                                           | 2                    | 26                                                      | 93                                | 0                                                        |
| 8) Confinement in Secure Correctional Facilities | 3                    | 0                                            | 0                    | 3                                                       | 2                                 | 0                                                        |
| 9) Transferred to Adult Court                    | 0                    | 0                                            | 0                    | 0                                                       | 0                                 | 0                                                        |

- a. Do you currently perform this required compliance activity? ☐ No ☒ Yes

If Yes, briefly describe how this is accomplished (who is responsible, how often is data entered/reports submitted, etc.):  
Prior to July 1, 2012 the City of Cheyenne's Juvenile Diversion Officer was responsible in coordination with the Office of Youth Alternatives for tracking this data on a weekly basis and it was reported to the County on a monthly basis. After July 1, 2012 the Diversion Officer and the Juvenile Services Center coordinate efforts of recording all information for juveniles.

If No, describe your plan to implement this activity:

- b. Are you requesting funds to maintain or implement this activity? ☐ No ☒ Yes

If Yes, briefly describe what needs to be funded and how much you are requesting: (\$83,460.00)

The funds requested are to continue contracting with the City of Cheyenne to provide the juvenile services diversion officer, who works closely with law enforcement, the courts and Juvenile Services Center and the Laramie County Community Juvenile Services Joint Powers Board to review all juvenile citations and arrests to determine compliance in intake, detention, and release, and consideration and use of appropriate diversion options.

**21. COMPLIANCE AREAS FOR WHICH YOU ARE REQUESTING FUNDS**

Check all areas, from Items 16 through 20 above, for which funds are being requested:

- ☒ 16. DATA COLLECTION AND REPORTING
- ☐ 17. DEINSTITUTIONALIZATION OF STATUS AND NON-OFFENDERS FROM SECURE HOLDING AND DETENTION
- ☐ 18. REMOVAL OF JUVENILES FROM CONFINEMENT IN ADULT JAILS OR LOCK-UPS

☐ 19. SEPARATION OF JUVENILES FROM ADULT INMATES

☒ 20. DISPROPORTIONATE MINORITY CONTACT

Total amount requested: (\$83,460.00)

**22. COMPLETE AND ATTACH ATTACHMENT II, PROJECT DESCRIPTION, AND ATTACHMENT III, BUDGET FORM.**

The activities and projects for which you are requesting funds must directly relate to the plans for maintaining or attaining compliance described in Items 12 through 16, above.

**23. FINANCIAL RESPONSIBILITY OF THE COUNTY**

These funds will only be released to the county government. The county is responsible for the receipt and disbursement of funds. Because these are federal dollars, they must be included in our annual county audit and should be identified as pass-through funds from VOANR under CFDA#16-540.

Describe how the funds will be managed and identify who will be responsible for the grant fund management (county clerk, grant manager, etc.):

The funds will be managed by the Laramie County Grants Manager, who by resolution of the Laramie County Commission has been designated as the County's agent for this project. The funds are managed as one of several federal grants received and administered by Laramie County. The funds will be used to pay for contracted services to be performed by the City of Cheyenne Police Department's Juvenile Diversion Officer.

#### 1. GRANT APPLICATION CERTIFICATIONS

The following assurances must be certified to by signature of the appropriate person.

- a. Chair (or Designated Commissioner), Board of County Commissioners: (typed name) Troy Thompson  
*I certify to the best of my knowledge that the information contained in this application and proposal are true and correct. If funded under this grant process, I further certify that awarded funds will be used on projects that further compliance with the core requirements of the Juvenile Justice and Delinquency Prevention Act of 2002 (JJDP). If the proposal is approved, all reimbursement requests will be approved and signed by a County Commissioner. Nothing in this certification shall deprive the District Court, Circuit Court, or Municipal Court judge from exercising his or her full authority as set forth by law.*
- K. N. Buck Holmes 4/25/13  
Signature KN Buck Holmes Date  
Chairman (Troy Thompson), Board of County Commissioners
- b. County Sheriff: Sheriff Danny Glick  
*I certify that my agency understands the role of law enforcement in this proposal and will participate in the projects set forth in the proposal. My agency will provide the required data on juveniles held securely in county jail and, where possible, municipal lock-ups within the county, provided that my agency will not release information that is prohibited from disclosure by law.*
- Kilgus 4-8-13  
Signature Under Sheriff Date  
County Sheriff
- c. Project Coordinator/Contact Person: Sandra Newland  
*I certify that my program will provide the required data on juveniles held securely in municipal lock-ups within the county if the data is not available through the County Sheriff. If this proposal is funded, I certify that quarterly financial and progress reports will be completed and submitted to VOANR in a timely fashion.*
- Sandra Newland 4/8/13  
Signature Date  
Project Coordinator/Contact Person

**ATTACHMENT I  
JUVENILE JUSTICE TEAM MEMBERSHIP**

| NAME              | TITLE         | AGENCY/COMPONENT<br>REPRESENTING             | CITY OF RESIDENT OR<br>AGENCY LOCATION |
|-------------------|---------------|----------------------------------------------|----------------------------------------|
| Richard Berry     | Secretary     | City of Cheyenne, Youth<br>Alternatives      | City of Cheyenne                       |
| Aflrieda Gonzales | Member        | Laramie County Community<br>Partnership      | Laramie County                         |
| Ronn Jeffrey      | Member        | Municipal Juvenile Court                     | City of Cheyenne                       |
| Diane Lozano      | Chairman      | State Public Defender                        | Laramie County                         |
| Betsy Putnam      | Treasurer     | CASA                                         | City of Cheyenne                       |
| Danny Glick       | Member        | Laramie County Sheriff                       | Laramie County                         |
| Jeff Lamm         | Member        | Wyoming Department of<br>Family Services     | Laramie County                         |
| Ross McKelvey     | Member        | Public Defender                              | Laramie County                         |
| Rick Robinson     | Member        | Pathfinder, Inc. (substance<br>abuse)        | City of Cheyenne                       |
| Gary Van Horn     | Member        | School District #1                           | City of Cheyenne                       |
| Carla Thurin      | Member        | School District #2                           | Laramie County                         |
| Craig Jones       | Member        | District Attorney                            | Laramie County                         |
| Michael Sorenson  | Member        | Sheriff's Department,<br>Detention           | Laramie County                         |
| Gus Lopez         | Vice Chairman | Cheyenne/Laramie County<br>Health Department | Laramie County                         |
| Terrence Bell     | Member        | Cheyenne Police Department                   | City of Cheyenne                       |
|                   |               |                                              |                                        |
|                   |               |                                              |                                        |
|                   |               |                                              |                                        |
|                   |               |                                              |                                        |
|                   |               |                                              |                                        |

## ATTACHMENT II PROJECT DESCRIPTION

Refer to "IV. Eligible Project Activities" in the VOANR RFP. The activities and projects for which you are requesting funds must directly relate to the plans for maintaining or attaining compliance described in Items 5 through 8 of the grant application. These plans incorporate the "Problem/Need Statement" and your **overall goal(s) is to attain or maintain compliance in these areas.**

Check all of the compliance area(s) this project and/or activities will address. *(Note: An activity or project can address more than one compliance area, for example, an alternative to detention program can impact areas 13, 14, and 15.)*

- ☒ 16. DATA COLLECTION AND REPORTING
- ☒ 17. DEINSTITUTIONALIZATION OF STATUS AND NON-OFFENDERS FROM SECURE HOLDING AND DETENTION
- ☐ 18. REMOVAL OF JUVENILES FROM CONFINEMENT IN ADULT JAILS OR LOCK-UPS
- ☐ 19. SEPARATION OF JUVENILES FROM ADULT INMATES
- ☒ 20. DISPROPORTIONATE MINORITY CONTACT

If you are requesting funds for more than one distinct activity or project, use the format below to describe each and attach to this application:

**Project/Activity Title:** City/County Juvenile Compliance and Diversion Officer

**Compliance Area(s) to be Impacted:** 1) Data Collection and Reporting 2) Deinstitutionalization of status and non-offenders from secure holding and detention 3) Disproportionate Minority Contact

**Overall Goal:** Reduce the number of juveniles in detention through creating and monitoring the implementation of policies to provide alternatives to detention. Increase compliance and improve monitoring of juveniles in detention facility. Reduce the likelihood of compliance violations.

### **Project/Activity Description:**

#### **A. Site Visits/Data Collection**

**Objective:** Develop and implement a monitoring program for contracted detention facilities to allow collection and reporting of data as well as the development and implementation of services provided to juveniles in detention.

**Activity:** Program funds will be used to contract City/County Juvenile Compliance and Diversion Officer. As noted in the application, the officer will track all juveniles from citation/arrest through disposition, and gather court data. This data will be combined with that collected at the Juvenile Service Center to form a complete picture of the interactions of Laramie County juveniles within the justice system.

**Output Measure:** Data will be collected and submitted quarterly to supervisors, Grants Manager and the Laramie County Community Juvenile Services Joint Powers Board.

**Outcome Measures:** Collected data will be reviewed to determine detention profiles and compliance with federal guidelines. Compliance with the terms of existing service contracts will be reviewed.

#### **B. Juvenile Citation/Arrest Review and Monitoring**

**Objective:** To ensure that alternatives to detention are considered when it is in the best interest of the juvenile and the community. Particular attention will be paid to status offenders to ensure that they are not being improperly detained.

**Activity:**

- a. Under the Juvenile Services diversion officer contract, the officer will be knowledgeable of services available in Laramie County and provide direct support to Cheyenne Police and Laramie County Sheriff's officers. Immediate contact is preferable but when not possible the contact will be made generally within 24 hours, with time to contact not to exceed 72 hours.
- b. The juvenile services diversion officer will review all juvenile citations to assess and determine whether the citation warrants further involvement from the Courts or if some form of diversion is appropriate.
- c. The juvenile services diversion officer will assist in contacting parents when necessary. In accordance with ordinances and policy, every attempt will be made to release juveniles to his or her parents.
- d. The juvenile services diversion officer will participate in the multi-disciplinary Juvenile Screening Committee to assist in determining whether diversion or some alternatives should be recommended to the Courts.

**Output Measures:** Individual citations will be reviewed daily to ensure that juveniles are placed in the least restrictive environment possible. Additionally, input will be provided to the Municipal and Circuit Court Judges to assist in determining the most appropriate consequences for convicted juveniles.

**Outcome Measure:**

- a. At the point of citation, more juveniles will be released to their parents and/or deferred from the juvenile justice system resulting in a decrease in the number of juveniles placed in detention.
- b. Law enforcement officers will be better informed of diversion alternatives and community services available to them.

**C. Training**

**Objective:** To increase the knowledge and skills of members of local law enforcement agencies about available services, understanding of adolescent behavior, and techniques for working with high-risk youth in crisis situations.

**Activity:** The JCDOs will work in coordination with the Office of Youth Alternatives to develop both orientation and in-service training for law enforcement officers. The training time and curriculum will be developed to allow for POST certification credit. The training will include but not be limited to:

- a. Services and how to access them.
- b. Current laws and procedures.
- c. Adolescent development stages.
- d. The impact law enforcement has on influencing adolescents and their parents.

**Output Measure:** Individual officers will be more knowledgeable and skillful in working with juveniles, resulting in greater use of more effective and appropriate alternatives.

**Outcome Measure:** Increased awareness and skill will allow for improvement of performance, greater consideration of alternatives to detention and feedback to leadership. This will allow for the refinement of policies to reduce juvenile detention and increase compliance.

**D. Reporting**

**Objective:** To provide accurate and timely data to community leadership and funding agencies on program performance and community conditions. Add the reporting information/data from the Juvenile Services Center.

**Activity:** With ten calendar days for each quarter during the JCDO, the contractor will report juvenile arrest and outcome statistics as required under the OJJDP funding. Each progress report shall set forth in narrative form the work performed.

**Output Measure:** The various members of the Juvenile Justice Team, including county elected leadership, and other stakeholders in this program will have information necessary to determine the viability of the program and assess the outcomes of the various program activities.

**Background of Key Project Personnel.** Provide a brief description of the experience and expertise of key project personnel.

**Ronn Jeffrey:** Cheyenne Municipal Court Judge, is a recognized authority on juvenile justice in both Wyoming and nationally. As founder and long-time director of Youth Alternatives, he has an intimate understanding of the opportunities and challenges facing juvenile justice in Laramie County.

**Juvenile Compliance and Diversion Officer Greg Smith:** Currently serves as the Juvenile Diversion Officer for the City of Cheyenne and Laramie County, Wyoming. Officer Smith has been in law enforcement over 14 years. Officer Smith is also a youth mentor with the Office of Youth Alternatives through the City of Cheyenne and has been a volunteer for the Youth activities Programs as F.E. Warren Air force Base.

**Grants Management:** Grant and contract management will be provided by the Laramie County Grants Manager, Sandra Newland and Jerrie Gehrman the County's Central Account Specialist.

### ATTACHMENT III BUDGET FORM

Provide, by Budget Category, the costs to be charged to this grant. Round all amounts to the nearest whole dollar. In addition, please ensure that the amounts noted below match the information provided in #8. BUDGET SUMMARY on page 1 of this application. A sample budget is provided on the following page for reference.

| A. PERSONNEL                                                               | (1)<br>Annual<br>Full-time<br>Salary | (2)<br>Annual<br>Fringe<br>Benefit Cost | (3)<br>Sub-Total | (4)<br>% to be paid<br>by grant<br>funds | TOTAL     |
|----------------------------------------------------------------------------|--------------------------------------|-----------------------------------------|------------------|------------------------------------------|-----------|
| Officer Greg Smith                                                         | \$60,515 +                           | \$22,101                                | = \$82,616       | x 100 %                                  | \$82,616  |
|                                                                            | \$ _____ +                           | \$ _____                                | = \$ _____       | x _____ %                                | \$ _____  |
|                                                                            | \$ _____ +                           | \$ _____                                | = \$ _____       | x _____ %                                | \$ _____  |
| <b>A. Total PERSONNEL cost to be charged to this grant:</b>                |                                      |                                         |                  |                                          | \$82,616  |
| <b>B. SUPPLIES &amp; OPERATING</b>                                         | Fixed Cost/Units                     |                                         | x                | Variable in Units                        | TOTAL     |
| Cell Phone per month                                                       | \$30.30 /                            |                                         | x                | 12                                       | \$ 364.00 |
| Air Card per month                                                         | \$40.01 /                            |                                         | x                | 12                                       | \$480.00  |
|                                                                            | \$ _____ /                           |                                         | x                |                                          | \$ _____  |
| <b>B. Total SUPPLIES &amp; OPERATING cost to be charged to this grant:</b> |                                      |                                         |                  |                                          | \$864.00  |
| <b>C. TRAVEL</b> (Designate specifically in-state and out-of-state travel) | Fixed Cost/Units                     |                                         | x                | Variable in Units                        | TOTAL     |
|                                                                            | \$ _____ /                           |                                         | x                |                                          | \$ _____  |
|                                                                            | \$ _____ /                           |                                         | x                |                                          | \$ _____  |
|                                                                            | \$ _____ /                           |                                         | x                |                                          | \$ _____  |
| <b>C. Total TRAVEL cost to be charged to this grant:</b>                   |                                      |                                         |                  |                                          | \$ _____  |
| <b>D. EQUIPMENT</b> (Items costing \$5,000 or more – contact VOANR)        | Fixed Cost/Units                     |                                         | x                | Variable in Units                        | TOTAL     |
|                                                                            | \$ _____ /                           |                                         | x                |                                          | \$ _____  |
|                                                                            | \$ _____ /                           |                                         | x                |                                          | \$ _____  |
| <b>D. Total EQUIPMENT cost to be charged to this grant:</b>                |                                      |                                         |                  |                                          | \$ _____  |
| <b>E. CONTRACTED, CONSULTANT, AND PROFESSIONAL SERVICES</b>                | Fixed Cost/Units                     |                                         | x                | Variable in Units                        | TOTAL     |
|                                                                            | \$ _____ /                           |                                         | x                |                                          | \$ _____  |
|                                                                            | \$ _____ /                           |                                         | x                |                                          | \$ _____  |
|                                                                            | \$ _____ /                           |                                         | x                |                                          | \$ _____  |
| <b>E. Total CONTRACTED, CONSULTANT, AND PROFESSIONAL SERVICES cost:</b>    |                                      |                                         |                  |                                          | \$ _____  |
| <b>F. Total of all PROJECT costs (A through E):</b>                        |                                      |                                         |                  |                                          | \$ 83,460 |

### **BUDGET NARRATIVE:**

Use plain paper, not to exceed 4 pages, and attach labeled as Attachment III, Budget Narrative, to explain the budget costs listed in the Budget Form above. Link all expenses listed in the Budget Form with the specific project activities/tasks stated in the objectives, including staff and resources to carry out those activities. **ALTHOUGH FORMAL MATCH IS NOT REQUIRED, EXPLAIN THE ADDITIONAL RESOURCES AND SUPPORT FOR PROJECT COSTS, AND THE SOURCE OF FUNDING.** These grant funds cannot be used to supplant existing local, state or private funds.

#### **Attachment III-Budget Narrative**

Juvenile Diversion Services: Funding is to contract with the City of Cheyenne to provide Juvenile Compliance and Diversion Services to and for Laramie County.

The cost of these services is for one full time sworn officer to continue diversion efforts for Laramie County and the City of Cheyenne for the cost of \$83,460.

The underlying costs of these services, in terms of personnel costs are explained below. While, these personnel costs are not the basis of the funding requests as the cost is determined by the negotiated contract between the two entities, it does illustrate that the local communities are paying a significant portion of the overall program costs.

Task: To provide early intervention and diversionary services to the juvenile justice system. Maintain compliance with the Data Collection and Reporting requirements and attain compliance with the requirements of the JJDP. Specifically this position will be responsible for the collection of data, submission of reports and monitoring of the Juvenile Detention Facilities.

Salary: \$60,515 per year of sworn diversion officer (Greg Smith)

Benefits: The benefit package through the City of Cheyenne per year: We are requesting a portion of that in the amount of \$22,101.00

Pension: \$5,204.32

Medicare: 877.47

WC: 1,803.36

Health \$17,863.00

Dental: \$336.00

Life: \$66.00

#### **Supplies and Operations:**

Cell Phone: \$30.30 per month

Air Card: \$40.01 per month

Total amount requested is the salary of Officer Smith with a portion of his benefits and the operation expenses = \$83,460.00

**SUSTAINABILITY PLAN:**

Provide a plan to sustain this project or service beyond the availability of grant funds. How will long-term cost savings be demonstrated to gain future support?

Prior to July 2011, Laramie County spent approximately \$460,000 per year for the detention of juveniles detained at a privately run juvenile detention and treatment facility, Southeast Wyoming Juvenile Services (formerly the Wardle Academy). This contract is a fixed price contract and does not take into account the number of juveniles served. Therefore, under the current contract, and incremental reduction in juveniles detained does not create a cost savings to Laramie County. However, with the changes noted below, there is an opportunity to revisit this contract and to demonstrate savings.

From July 2011 through June 2012, that amount increased to \$482,100. On July 1, 2012, Laramie County opened its Juvenile Services Center, constructed with ARRA grant funding and bond proceeds through the Laramie County Community Juvenile Services Joint Powers Board. The opening of this facility, and its operation by the Laramie County Sheriff's Office, along with the development of a continuum of care in the community by the Laramie County Community Juvenile Services Joint Powers Board, will ensure the appropriate diversion alternative, thus reducing the number of juvenile detainees and leaving the costs associated with juvenile detention.

The Laramie County Community Juvenile Services Joint Powers Board has added tremendous support to the community in assisting juveniles. The County and City as well as the community partnerships have an invested part in ensuring that the juveniles receive the services they deserve and need. It is with these partnerships that Laramie County will continue to fund the various programs to reduce the number and duration of juvenile detentions and eventually to reduce the number of juvenile violations.

## **Attachment B: Disproportionate Minority Contact (DMC) Information Sheet**

The Current Laramie County and City of Cheyenne Juvenile Diversion program does not track the status of juvenile offenders by contact point. Currently this information is retained at the Department of Family Services (DFS) level in connection with the District Attorney's Office.

If grant funding is awarded, Laramie County and the City of Cheyenne will incorporate a system to track information using OJJDP's racial/ethnic categories. This will provide numbers for all youth who come into contact with the justice system at the various contact points arrest through transfer.

The contract between Laramie County and the City of Cheyenne will detail what information needs to be tracked and provide the necessary spreadsheet to the Diversion Officer to fill out and report to the County quarterly. This process will be one of coordination and collaboration between the County, City, DFS and the DA's office.

This application is not requesting specific funding associated with this task. The tracking will be considered a part of the job description for the diversion officer. This information will assist the County and the City in being able to make informed decisions on how to best allocate resources and services within our juvenile population.

## **Juvenile Diversion and Compliance Office Program (JCDO)**

Presently, Laramie County does not confine juveniles in adult jails. Our potential violations relate to detention of status offenders and sight and sound separation before, during and after judicial proceedings.

The nature of the JCDO position is that of an advocate for the juvenile as they are guided through the juvenile justice system. The three key roles of the position and the relation of each to the reduction of JJDP violations are as follows:

**Diversion**- From the issuance of citations through diversion or adjudication, the JCDO is responsible for monitoring the justice system and encouraging use of alternatives to detention. This is expected to reduce violations outright through the diversion of status offenders and indirectly by reducing the number of juveniles for which sight and sound violations may occur.

**Data Collection and Reporting**- We believe that to date, the data collection and reporting submitted by county entities to the State of Wyoming has resulted in reported violations when no violation in fact occurred. This is due to instances where juveniles have been apprehended for status offenses but detained due to outstanding warrants, DFS actions, etc. and the detention is incorrectly attributed to the status offense. According to Beth Evans of the WCCA, this has been an ongoing issue in this jurisdiction and has resulted in reported violations when no violation has occurred. Improved data collection and reporting by the JCDO position is expected to reduce reported violations in these cases.

**Compliance**- By monitoring juvenile cases and the detention facility, the JCDO will be able to intervene or request intervention in cases where a violation may occur. In effect, this position represents a quality control on our juvenile justice processes. This proactive approach will both reduce violations and develop a systemic process to avoid violations in the future.

**Training and Education**- By educating law enforcement, the judiciary, detention staff and at risk youth on alternatives to detention, we hope to cause a long term shift away from the detention of juveniles.

Some specific examples of these roles include, but are not limited to:

### **Diversion**

- Being present in court with juveniles and during the issuance of juvenile warrants and summons to provide options and alternatives to detention (diversion role).
- Monitoring the juvenile detention center through site visits and contact with juveniles (Compliance and Data Collection Roles).
- Making contact with juveniles at the group home (Attention Home) upon release from the detention center (Diversion and Training and Education Roles).
- Filing in at schools for resource officers (Diversion Role).
- Providing a support system for parents of troubled juveniles and offering them service to reduce detention outcomes due to Child in Need of Supervision (Diversion Role).
- Participating on the Laramie County/City of Cheyenne Juvenile Screening Committee to review the outcomes of juvenile cases (Diversion Role).
- Partnering with the Department of Family Services in regards to current case management (Diversion Role).
- Performing home visitation for the Juvenile Court (Diversion Role).

**Project Description Laramie County**

**I. Project Title: City/County Juvenile Compliance and Diversion Officer**

**A. Compliance Area to be impacted:**

- a. Data collection and reporting
- b. Deinstitutionalization of status and non-offenders from secure holding detention.
- c. Develop alternatives to detention

**B. Overall Goal:**

Reduce the number of juveniles in detention through creating and monitoring the implementation of policies and programs to provide alternatives to detention. Increase compliance and improve monitoring of juvenile detention facilities in Laramie County, resulting in a reduction of compliance violations.

**C. Project Partners:**

- a. Laramie County
- b. City of Cheyenne
- c. City of Cheyenne Police Department (CPD)
- d. Laramie County Sheriff's Department (LCSD)
- e. Cheyenne Office of Youth Alternatives (OYA)
- f. Laramie County Juvenile Services Joint Powers Board (LCJSJPB)

**II. Project/Activity:**

**A. Site Visits/Data Collection**

**a. Objectives:**

- i. Development and implementation of a monitoring program for contracted detention facilities to allow collection and reporting of data, as well as the development and implementation of services provided to juveniles in detention.

**b. Activity:**

- i. Program funds will be used to staff a City/County Juvenile Compliance/Diversion Officer. The person will be dual commissioned with the CPD and the LCSD and will work under the direct supervision of the Cheyenne Police Department in coordination with the Office of Youth Alternatives. In an effort to meet the above stated objective, the compliance/diversion officer is responsible for the following:
  - 1. To monitor all juveniles placed at the Laramie County Juvenile Services Center and/or any other facility the City/County may utilize

for juvenile detention services. Monitoring will include, but is not limited to:

- a. Daily review of detention records
  - b. Regular on-site interviews and monitoring of City/County detention placements.
  - c. Monitoring services provided to juveniles at the facility including:
    - i. Ensuring an individual case plan for juveniles placed longer than 7 days at the facility is developed and implemented. This would only include juveniles placed at the facility by the CPD and LCSD for violations punishable in the Municipal and Circuit Courts.
    - ii. The plan may include educational services, counseling services, and structured recreation time. All counseling and educational services will be coordinated with the placing agency, i.e. CPD, LCSD, Circuit Court and/or the Municipal Court.
2. Ensure that the detention facility follows agreed-upon procedures for juveniles placed at the facility including:
- a. Notification prior to placement of juvenile inmates at any other facility within or outside of Laramie County.
  - b. Provision of all information regarding juveniles placed at the facility. The compliance/diversion officer will provide this information to the Municipal and Circuit Courts.
  - c. Immediate notification if a juvenile is determined to be absent from the facility without authorization.
3. To review detention records and collect all data regarding juveniles placed at the facility by the City or County so that information can be appropriately reported. This information may include:
- a. Arrest and booking information
  - b. Individual case plan
  - c. All chronological information pertaining to the juvenile's actions and progress in the program
  - d. Incident report

**c. Outcome Measure:**

- i. Data will be collected and submitted monthly to supervisors. Monitoring visits will occur at least weekly at the Laramie County Juvenile Services Center. If needed, site visits will also be made to the Casper Regional Detention Center.

- ii. Collected data will be reviewed to determine detention profiles, compliance with federal guidelines and compliance with terms of existing service contracts.

### III. Juvenile Citation/Arrest Review and Monitoring

#### A. Objectives:

To ensure that alternatives to detention are considered when it is in the best interest of the child and the community. Particular attention will be made to status offenders to ensure they are not being placed in detention inappropriately.

#### B. Activity:

- a. The juvenile compliance/diversion officer will be knowledgeable of services available in Laramie County and provide direct support to Cheyenne Police and the Laramie County Sheriff Officers. Immediate contact is preferable but when not possible the contact will generally be within 24 hours and will not exceed 72 hours.
- b. The officer will review all juvenile citations to assess and determine if the citation warrants further involvement from the Court(s) or if some form of diversion is appropriate.
- c. The officer will also assist in contacting the parents when necessary. In accordance with City Ordinances, every attempt will be made to release the juvenile to his/her parents.
- d. The diversion officer will participate in the multi-disciplinary Juvenile Screening Committee to assist in determining whether diversion or other alternatives should be recommended to the Court(s).

#### C. Output Measure

- a. Individual citations will be reviewed daily to ensure that juveniles are placed in the least restrictive environment possible. Additional, input will be provided to the Municipal and Circuit Court Judges to assist in determining the most appropriate consequences for convicted juveniles.
- b. At point of citation, more juveniles will be released to their parents and/or deferred from the juvenile justice system resulting in a decrease in the number of juveniles placed in detention.
- c. Police and Sheriff's Officers will be better informed of diversion alternatives and community services available to them.

### IV. Training

#### A. Objective:

To increase the knowledge and skills of members of the Cheyenne Police Department and the Laramie County Sheriff's Department about available services, understanding adolescent behavior, and techniques on working with high risk youth in crisis situations.

#### B. Activity

The compliance/diversion officer will work in coordination with the Office of the Youth Alternatives to develop both orientation and in-service training for police and sheriff's officers. The training time and curriculum will be developed to allow for POST certification. The training will include but not be limited to:

1. Services and how to access them
2. Current laws and procedures on detaining juveniles
3. Adolescent developmental stages
4. The impact law enforcement has on influencing adolescents and their parents.
5. Other appropriate topics

**C. Output Measures**

- i. Individual officers will be more knowledgeable and skillful in working with juveniles, resulting in greater use of more effective and appropriate alternatives.
- ii. Increased awareness and skill will allow for improvement to performance, greater consideration of alternatives to detention and feedback to leadership. This will allow the refinement of policies to reduce juvenile detention and increase compliance.



*Cheyenne, Wyoming*  
*Police Department*  
*Protecting the Legend*

2020 Capitol Avenue  
Cheyenne, WY 82001  
Phone (307) 637-6500  
Fax (307) 637-6558

*Brian N. Kozak, Chief of Police*

[www.cheyennepd.org](http://www.cheyennepd.org)

April 8, 2013

Subject: OJJDP Juvenile Diversion Grant

Dear Commission Member:

I am writing this letter in full support of the grant proposal. The funding has allowed our agency to appoint a Juvenile Diversion Officer, which would otherwise not be possible after a reduction of workforce last year. The program has permitted the Cheyenne Police Department to work with Laramie County to meet the goals of the Juvenile Justice and Delinquency Prevention Act of 2002.

For example, officers are trained to work with the Juvenile Officer to divert a juvenile from detention into a diversion program. The officer works with the Court to monitor juveniles who remain at home; thus, avoiding incarceration and assisting with disproportionate minority contact issues.

The program has proven to reduce repeat offenses; therefore, increasing the likelihood that the juvenile will lead a productive adult life. I appreciate your thorough review of our request to continue this program.

Sincerely,

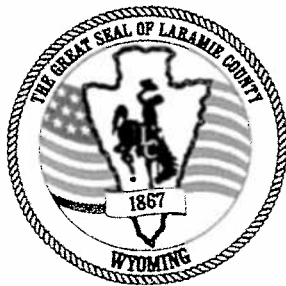
A handwritten signature in black ink, appearing to read "Brian N. Kozak".

Brian N. Kozak  
Chief of Police

Grants Copy

**Laramie County  
Grants  
Department**

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**Sandra Newland-Grants Manager**  
309 W. 20<sup>th</sup> Street, Suite 3100  
Cheyenne, WY 82001  
307-633-4201

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April 29, 2013

Craig Fiskus  
VOA OJJDP Project  
1876 S. Sheridan Ave.  
Sheridan, WY 82801

Mr. Fiskus:

Enclosed you will find the Laramie County 2011 OJJDP Non-Participating State Grant Application. Also included you will find:

- Attachment B Disproportionate Minority Contact Information
- Juvenile Diversion and Compliance Office Program
- Project Description for Laramie County OJJDP
- A letter of support from Chief Brian Kozak of the Cheyenne Police Department
- Laramie County Resolution of application submission

If awarded, an MOU between the Cheyenne Police Department, Laramie County and the Juvenile Services Joint Powers Board will be signed for activities described within the application.

If you should have any questions or need additional information please do not hesitate to contact me.

Thank you!

Sincerely,

  
Sandra Newland  
Laramie County Grants Manager  
[snewland@laramiecounty.com](mailto:snewland@laramiecounty.com)

---

RESOLUTION 130423-14

**ENTITLED: "A RESOLUTION AUTHORIZING THE SUBMISSION OF A GRANT APPLICATION TO THE VOLUNTEERS OF AMERICA NORTHERN ROCKIES (VOANR) FOR AN OFFICE OF JUVENILE JUSTICE DELINQUENCY PREVENTION (OJJDP) NON-PARTICIPATING STATE FORMULA GRANT FOR THE PURPOSE OF CONTRACTING WITH THE CITY OF CHEYENNE POLICE DEPARTMENT TO PROVIDE JUVENILE DIVERSION SERVICES IN THE AMOUNT OF \$83,460.00**

**WITNESSETH**

**WHEREAS,** The Volunteers of America Northern Rockies receives OJJDP Non-Participating Formula Grant Funds; and

**WHEREAS,** The Volunteers of America Northern Rockies will allocated a portion of these funds to Wyoming Counties; and

**WHEREAS,** the Laramie County Board of Commissioners is eligible to receive these funds; and

**WHEREAS,** the Laramie County Board of Commissioners has knowledge of this application.

**THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF LARAMIE COUNTY, WYOMING**

That the Laramie County Board of Commissioners approves submission of an application to the Volunteers of America Northern Rockies for OJJDP Non-Participating Formula Grant funding in the amount of \$83,460.00; and

**BE IT FURTHER RESOLVED,** that Sandra Newland, Laramie County Grants Manager, is hereby designated as the authorized representative of Laramie County to act on behalf of the Governing Body on all matters relating to this grant application.

**PRESENTED, READ AND ADOPTED THIS 16<sup>th</sup> DAY OF April, 2013.**

  
Troy Thompson, Chairman

ATTEST:

  
Debbye K. Lathrop, Laramie County Clerk

4/25/13  
Date

Received and Approved As To Form Only By

  
Mark Voss, County Attorney

4/10/13  
Date

14

# LARAMIE COUNTY CLERK BOARD OF COUNTY COMMISSIONERS AGENDA ITEM PROCESSING FORM

1. DATE OF PROPOSED ACTION: April 16, 2013

**2. AGENDA ITEM:** Appointments      Bids/Purchases      Claims  
Contracts/agreements/leases      Grants      Land Use: Variances/Board App/Plats  
Proclamations      Public Hearings/Rules & Reg's      Reports & Public Petitions  
Resolutions      Other

3. DEPARTMENT: Grants

APPLICANT: Sheriff's Office

AGENT: Sandra Newland

**4. DESCRIPTION:** Consideration of a resolution authorizing the submission of a grant application to the Volunteers of America Northern Rockies (VOANR) for an Office of Juvenile Justice Delinquency Prevention (OJJDP) Non-Participating State Formula Grant for the purpose of contracting with the City of Cheyenne Police Department to provide Juvenile Diversion Services.

AMOUNT: \$83,460

Term: October 1, 2013- September 30, 2014

5. DOCUMENTATION: 2 originals

RECEIVED AND APPROVED AS  
TO FORM ONLY BY THE  
LARAMIE COUNTY ATTORNEY

Clerks Use Only:

Commissioner

Ash \_\_\_\_\_

Hasenauer \_\_\_\_\_

Holmes \_\_\_\_\_

Humphrey \_\_\_\_\_

Thompson \_\_\_\_\_

Action \_\_\_\_\_

Postponed/Tabled \_\_\_\_\_

Signatures

Co Attny \_\_\_\_\_

Assist Co Attny \_\_\_\_\_

Grants Manager \_\_\_\_\_

Outside Agency \_\_\_\_\_